let us declaim that the choice rests with those who hold power.' The choice is not with the revolutionaries who would rather not use any violence because, '[*r*]*evolutionaries by virtue of their altruistic principles are lovers of peace – a genuine and permanent peace based on justice and equity*, not the illusory peace resulting from cowardice and maintained at the point of bayonets' (emphasis added). What they object to is being forced into servility and quietude at the tip of a bayonet. This is why '[i]f *the revolutionaries take to bombs and pistols it is only as a measure of terrible necessity as a last recourse*' (emphasis added). They themselves were not against law and order that was genuinely intended to serve such ends. They were against it if it was a sham. The charges levelled against the young men were preposterous if they implied that they were against 'Law and Order.' This is because 'as the supreme juris counsil (sic) of Revolutionary France has well expressed', when the law is properly deployed it brings freedom for its people so that 'the end of law is not to abolish or restrain but to preserve and enlarge freedom'. The present colonial government was not acting in the interests of the common welfare of the Indian people. It had no legal basis to act as it did because 'legitimate power is required to govern by promulgated laws *established for the common good alone* and resting alone *on the consent and the authority of the people, from which law, no one is exempt – not even the legislature*' (emphases added). In fact, this exact position was affirmed in the English Court of Appeal in 2007 in the Chagos Islands case where the importance of a colonial law, being 'directed to the wellbeing of a dependent territory and its population', was firmly emphasized in terms of 'what is best for a colony . . .'. The function of a judicial tribunal is that 'it is their constitutional function to decide whether what has been enacted . . . is rationally and legally capable of providing for a colony's wellbeing. If it is not, then it falls outside the prerogative power' and '[t]hat territory's interests will not necessarily be the interests of the United Kingdom or of its allies'.[2]

The young revolutionaries were ahead of their time when they declared that the governors and the governed were subject to law. In this way, they could question the very authority under which they were being tried. And